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AS AMENDED

By: Alonso-Sandoval of the
House

Nice of the Senate

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1 funds become available. The Cost Share Program shall provide monies
2 to eligible persons.

3 B. The purpose of the Urban Agriculture Cost Share Program is
4 to promote sustainable urban agricultural practices, improve food
5 security, and enhance green spaces in Oklahoma's urban areas.

6 C. The Oklahoma Conservation Commission Infrastructure
7 Revolving Fund shall provide funding for the Urban Agriculture Cost
8 Share Program. When sufficient funds are available in the Oklahoma
9 Conservation Commission Infrastructure Revolving Fund, the
10 Commission shall develop and disseminate the program guidelines to
11 the conservation districts containing urban areas. The guidelines
12 shall detail incentives to eligible persons for initiating and
13 continuing urban agriculture initiatives.

14 D. To implement the program, the Commission shall require
15 conservation districts to enter into contracts for eligible projects
16 on eligible land detailing the eligible person's responsibilities.

17 E. For purposes of the Urban Agriculture Cost Share Program:

18 1. "Eligible person" means any individual, partnership,
19 corporation, or legally recognized Indian tribe which shall include
20 land held in trust, estate, or trust who as an owner, lessee,
21 tenant, or operator participates in the care or management of land
22 within a conservation district;

23 2. "Eligible land" means land that is within five (5) miles of
24 an urban area that is:

- a. privately owned land within the state,
- b. land owned by the state or a political subdivision of the state, or
- c. lands temporarily owned by the United States or a corporation wholly owned by it, which were not acquired or reserved for conservation purposes, including lands administered by the Farm Service Agency, the U.S. Department of Defense, or by any other government agency;

3. "Eligible projects" means urban agriculture projects that include, but are not limited to:

- a. establishing or expanding community gardens in urban neighborhoods,
- b. rooftop and vertical farming,
- c. installing greenhouses, high tunnels, or hoop houses for food production,
- d. installing rainwater harvesting systems and efficient irrigation for urban farming,
- e. enhancing soil health through composting and nutrient management in urban areas,
- f. establishing urban apiaries,
- g. planting urban pollinator gardens,
- h. building livestock infrastructure such as chicken coops or goat enclosures,

- i. developing and implementing education programs on urban farming practices,
- j. creating, operating, and maintaining an urban food waste composting program,
- k. urban marketing initiatives for Oklahoma farms to sell in urban areas, and
- l. other projects that accomplish the objectives and purpose of this Cost Share Program; and

4. "Urban Area" means the areas in Oklahoma which have been defined by the United States Census Bureau as urban areas based on certain criteria and utilizing data from the most recent Federal Decennial Census.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3-3-603 of Title 27A, unless there is created a duplication in numbering, reads as follows:

When developing the guidelines for an Urban Agriculture Cost Share Program, the Oklahoma Conservation Commission shall consider:

1. Prioritizing projects in geographic areas where residents have low levels of access to retail outlets selling healthy and affordable food;

2. Building on existing urban agriculture projects to continue to grow community engagement;

1 3. Reviewing approved cost-share methods available through
2 USDA-NRCS to promote urban agriculture, improve urban food security,
3 and enhance green spaces in urban areas; and

4 4. Evaluating if other federal, state, or Oklahoma tribal
5 programs can be enhanced by the inclusion of practices in the
6 Commission's Urban Agriculture Cost Share Program.

7 SECTION 4. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 3-3-604 of Title 27A, unless
9 there is created a duplication in numbering, reads as follows:

10 A. The Conservation Commission shall require applicants to
11 submit information, forms and reports as necessary to properly and
12 efficiently administer the Urban Agriculture Cost Share Program.

13 B. Persons may apply to a conservation district for cost share
14 funds for eligible urban agriculture initiatives in the State of
15 Oklahoma, in accordance with the Cost Share Program year guidelines
16 prepared yearly by the Commission. To be eligible for reimbursement
17 for an urban agriculture cost share project, an eligible person
18 shall:

19 1. Develop and file for review and approval with the
20 conservation district a project plan that details the urban
21 agriculture project plans, location of project, materials needed,
22 expected expenditure, length of time expected to complete project
23 construction, monitoring or operation plan if applicable, and
24 expected community benefit of project; and

1 2. Enter into a contract with a conservation district detailing
2 the responsibilities of the eligible person for the initial Cost
3 Share Program year as well as any potential continuing
4 responsibilities that are required to operate and maintain the
5 project, if applicable.

6 C. Applications for funds shall be approved or denied by the
7 conservation district in accordance with promulgated criteria
8 prepared by the Commission.

9 SECTION 5. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 3-3-605 of Title 27A, unless
11 there is created a duplication in numbering, reads as follows:

12 Upon the conclusion of each Cost Share Program year, the
13 Oklahoma Conservation Commission shall prepare and post on the
14 agency website the statistical data for number and type of urban
15 agriculture projects, funds expended, and urban community impacts by
16 urban area of the cost share practices for that program year. This
17 same information shall also be shared with the state cabinet
18 Secretaries of Agriculture and Energy and Environment.

19 SECTION 6. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 3-3-606 of Title 27A, unless
21 there is created a duplication in numbering, reads as follows:

22 Nothing in this act or in the contract executed pursuant to
23 Section 4 of this act shall be interpreted or construed to
24 constitute a financial or general obligation of the state. No state

1 revenue shall be used to guarantee or pay for any damages to
2 property or injury to persons as a result of the provisions of this
3 act or the contract.

4 SECTION 7. AMENDATORY 27A O.S. 2021, Section 3-2-110, is
5 amended to read as follows:

6 Section 3-2-110. A. There is hereby created in the State
7 Treasury a revolving fund for the Oklahoma Conservation Commission
8 to be designated the "Oklahoma Conservation Commission
9 Infrastructure Revolving Fund".

10 B. The fund shall be a continuing fund, not subject to fiscal
11 year limitations, and shall consist of all monies received by the
12 Oklahoma Conservation Commission from the apportionment of gross
13 production tax revenues as prescribed by Section 1004 of Title 68 of
14 the Oklahoma Statutes.

15 C. All monies accruing to the credit of said fund are hereby
16 appropriated and may be budgeted and expended by the Oklahoma
17 Conservation Commission for the purpose of the rehabilitation of
18 watershed dams and⁷ for the Conservation Cost Share Program, the
19 Urban Agriculture Cost Share Program, and the Conservation Reserve
20 Enhancement Program.

21 D. Expenditures from said fund shall be made upon warrants
22 issued by the State Treasurer against claims filed as prescribed by
23 law with the Director of the Office of Management and Enterprise
24 Services for approval and payment.

1 E. No more than thirty percent (30%) of the monies in the fund
2 shall be used for the payment of administrative expenses, salary or
3 any other continuing obligation of the Oklahoma Conservation
4 Commission; provided, however, such monies shall not be used for
5 salary increases for employees.

6 SECTION 8. This act shall become effective November 1, 2025.

7 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS
8 April 16, 2025 - DO PASS AS AMENDED
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